

Amrita Arya v. Uttar Pradesh Power Corporation Ltd. & 2 Ors.

Allahabad High Court · Division Bench · 10 April 2018 · 2018 SCC OnLine All 302 · Writ - C No. 12931 of 2018 · **Writ petition not entertained; consigned to record**

HEADNOTE

A consumer cannot at once contest her liability for electricity dues before the Consumer Grievance Redressal Forum and seek a mandamus from the writ court to accept the recovery amount and restore the connection — the two courses are inconsistent, and a litigant cannot pursue two remedies simultaneously for the same cause. Where the consumer's complaint (about an inflated bill) was already pending before the Forum, which the Court had earlier directed to decide within three months, and there was nothing to show she had waived her right to contest before the Forum, the Court declined to entertain a fresh writ seeking to pay and restore. It clarified that if the consumer tenders the amount sought to be recovered, the Executive Engineer may accept it and pass an appropriate order under the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

INTERPLAY · EA2003::42

No simultaneous pursuit of inconsistent remedies (Forum contest vs mandamus to pay/restore)

QUESTION

Can a consumer contesting liability before the CGRF simultaneously obtain a writ directing the licensee to accept payment and restore supply?

HOLDING

No. A consumer who is contesting her liability before the CGRF cannot simultaneously seek a mandamus to pay the recovery and restore supply — the two are inconsistent, and a litigant cannot avail two remedies simultaneously for the same cause. The writ was not entertained; but if the consumer tenders the amount, the Executive Engineer may accept it and pass an appropriate order under the Code. ¶ 7-9

LIMITING FACTS

Complaint No. 304 of 2017 about an inflated bill pending before the CGRF; an earlier writ dismissed for simultaneous remedies and another directing the CGRF to decide within three months; nothing showing waiver of the Forum remedy.

PRINCIPLE TAGS

approve-and-reprobate-bars-selective-repudiation A consumer cannot both contest liability before the CGRF and seek a mandamus to pay and restore; the inconsistent, simultaneous pursuit of two remedies for the same cause is not permitted. ¶ 7-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE CORRECTNESS OF THE DISPUTED/INFLATED BILL

Left to the CGRF (Complaint No. 304 of 2017); the writ court declined to adjudicate liability while that remedy was being pursued. ¶ 7-8